PATROBS DUBE

Versus

PROSECUTOR GENERAL N.O

AND

PUBLIC SERVICE COMMISSION

AND

MINISTER OF JUSTICE, LEGAL AND PARLIAMENTARY AFFAIRS N.O

AND

MINISTER OF FINANCE AND ECONOMIC DEVELOPMENT N.O

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 16,19 SEPTEMBER, 3,17 OCTOBER, 24 NOVEMBER and 3 DECEMBER 2025

Opposed Application

J Mhlanga, for the applicant
N Ngwenya, for the 1st respondent
L Dube, for 2nd, 3rd and 4th respondents

KABASA J: This is an application for contempt of court in terms of r 79 of the High Court Rules, 2021 wherein the applicant seeks the following order: -

1. That the 1st and 2nd respondents be declared to be in contempt of court.
2. That the 1st respondent be committed to imprisonment for a period of 30 days the whole of which is suspended on condition that he complies with the High Court order under case number HC 2009/16 (XEF LC/MT/65/13) directing him to facilitate the reinstatement of the applicant as a full member without loss and benefits of the National Prosecuting Authority of Zimbabwe within 10 days of the granting of this order. (*sic*)

3. That in the event that the 1st respondent fails to comply with this order, he shall in his personal capacity be barred from approaching or appearing as a legal practitioner in any court in Zimbabwe.
4. That the 1st and 2nd respondents pay the cost of suit on an attorney client scale.

The background to the application is that, in 2011, the applicant, a Public Prosecutor employed by the 2nd respondent, had his prosecutorial authority withdrawn along with that of four colleagues after being accused of instigating an industrial action. They challenged this decision in the High Court in HC 11251/11, arguing it violated the Administrative Justice Act by denying them a fair hearing. The court ruled in their favour and ordered their reinstatement. Subsequently misconduct hearings were conducted and the applicant and his colleagues were found guilty of misconduct related to the same industrial action and dismissed. The Applicant appealed to the Labour Court (LC/MT/65/13). The 2nd respondent was in default. The Labour Court, after finding that the appellant had made a case for the relief he was seeking, granted a default judgment ordering reinstatement without loss of salary and benefits, or alternatively, damages if reinstatement was no longer feasible.

In 2014, the 2nd respondent unsuccessfully sought to have the 2013 Labour Court judgment rescinded. A further attempt to have the matter reviewed by the High Court yielded nothing as it was eventually abandoned. In 2015 the Supreme Court dismissed the 2nd respondent's appeal against the High Court judgment. In February 2016, the 2nd respondent indicated that reinstatement was no longer possible, opting to pay damages in lieu of reinstatement. The applicant's attempts to report for duty were rebuffed. In February 2016 the 2nd respondent calculated what it deemed as due to the applicant and paid US$31,446.56. In September 2016 the applicant sought and obtained, in default, a declaratory order transferring him to the NPA in terms of s32(4) of the NPA Act [Chapter 7:20]

In 2017, the National Prosecuting Authority (NPA) sought to rescind the High Court judgment, HC 2009/16, without success.

In December 2017, the applicant's lawyers wrote to the 1st respondent seeking resolution. In February 2018, the 1st respondent advised the applicant that he would not be engaged as the order he obtained after the Labour Court judgment was invalid and amounted to forum shopping. In March 2021, the applicant petitioned the Parliamentary Portfolio Committee for Justice to intervene but received no response. In May 2022, he again wrote to

the 1st respondent requesting compliance but received no response. In August 2022, he followed up on his petition with the Clerk of Parliament but received no feedback.

In February 2023, the applicant opted to pursue contempt of court proceedings and a formal letter requesting his reinstatement was served on the 1st respondent on 14 April 2023 and on the 2nd respondent on 17 April 2023, but no response was received.

It is on the basis of the foregoing background that the applicant seeks an order for contempt of court against the 1st and 2nd respondents.

The application was opposed by the 1st respondent. The opposition by the respondent was on the basis that the order that was obtained by the applicant was irregularly obtained and unenforceable against the 1st respondent. The Labour Court ordered reinstatement or payment of damages in lieu of reinstatement. Since reinstatement was no longer an option as communicated to him by the 2nd respondent, his recourse lay in having the damages quantified. The 1st respondent could therefore not be held to be in contempt of court. The 2nd, 3rd and 4th respondents did not oppose the substance of the application and at the initial hearing of the application counsel for the respondents indicated that since no substantive order was being sought against the respondents, no further submissions would be made. The parties also abandoned the points *in limine* they had raised. The matter thus effectively pitted the applicant and 1st respondent.

Applicant's submissions

Mr Mhlanga for the applicant submitted that the 1st respondent was made aware of the court order in HC 2009/16 which order remains extant. The 1st respondent has refused to comply with the court order in HC 2009/16, and it is for that reason that the applicant seeks an order for contempt of court against the 1st respondent. Counsel also submitted that as regards costs, the costs were only being sought against the 1st respondent to the exclusion of the other respondents. Counsel relied on *Telecel Zimbabwe (Pvt) Ltd* v *A-G of Zimbabwe* SC 01-14 in support paragraph 3 of the draft order and prayed for an order in terms of the draft.

1st Respondent's submissions

Ms Ngwenya for the 1st respondent held a different view. She submitted that the applicant was not being candid with the court. Counsel stated that the applicant had a judgment of the Labour Court in his favour ordering his reinstatement or payment of damages *in lieu* of

reinstatement. The 2nd respondent opted not to reinstate the applicant and what had to be looked at was the payment of damages.

Counsel also contended that the High Court declaratory order was therefore not competent. At this juncture the court alerted counsel to the decision in *Heuer* v *Two Flags Trading (Private) Limited* SC 45-24, whereupon counsel requested for an adjournment so she could familiarise herself with the judgment. The request was granted. On resumption counsel for the 1st respondent sought the court's indulgence to postpone the matter to allow her to consult her principal in light of the decision in the *Heuer* case (supra). There was no objection from applicant's counsel, and the matter was postponed to 19 September 2025. At the hearing of the matter on 19 September 2025 the matter was again postponed to 3 October 2025 as parties agreed that the matter was capable of resolution between them and there was a possibility of coming up with a deed of settlement. On 3 October 2025, the applicant was furnished with a document that had quantification of the damages due to the applicant. The court granted another postponement so as to allow the applicant, who had intimated that they had been shown the document just before appearing before the judge, time to go through the document and come up with its own quantification, if need be. On 17 October 2025 parties appeared for hearing, and it was brought to the court's attention that the parties had failed to find each other as the 1st respondent was not in agreement with the amount suggested by the applicant. Counsel for the applicant submitted that the applicant wished to pursue his application for contempt and have the matter determined by the court. The matter was subsequently postponed to 24 November 2025. On 24 November 2025, the 1st respondent was in default; however, arguments had already been presented and all that was left was a reply from the applicant's counsel. The matter thus proceeded with counsel for the applicant motivating his application for the relief sought.

Application of the Law to the Facts

The High Court judgment under case number HH 121-12, *Mudisi & Ors* v *Tomana & 2 Ors* restored the applicant into his position without loss of rights. The Supreme Court judgment in *Attorney-General* v *Mudisi & Ors* S48-15 upheld the High Court decision. After the applicant was restored to his position he was dismissed following a disciplinary hearing. After his challenge of this dismissal the Labour Court's order was to the following effect:-

"1. The appeal is hereby upheld.

2. The appellant is to be reinstated to his employment without loss of salary and benefits.

3. In the event that reinstatement is no longer possible, the appellant is to be paid damages *in lieu* of reinstatement.

4. The parties should agree on the quantum of damages, if they fail to agree, they are to approach the court for quantification."

The order clearly showed that the employer had an option, reinstatement and in the event that the relationship was too fractured to allow for reinstatement, the alternative was payment of damages.

The rational for imposing the alternative of payment of damages was enunciated by the Supreme Court in *Triangle Ltd* v *Sigauke* S 52-15 where the court said: -

> "…when a court makes an order for reinstatement it must also make an order for damages as an alternative to reinstatement. This is because of the time-honoured principle of the common law that an employer is not to be compelled to retain in his employ an employee whom he no longer wishes to employ by virtue of the fact that the relationship has soured beyond reconciliation." (See also *Mandiringira* v *NSSA & 4 Ors* HH 98-05)

Attempts to vacate the Labour Court judgment resulted in delays in finalising the issue of either reinstatement or payment of damages. In a letter dated 18 February 2016 the employer advised that reinstatement was no longer possible and went on to state what was to be paid to the applicant. It was not clearly stated that this payment was meant to be damages *in lieu* of reinstatement but one can safely say it must have been since the employer stated its intention to comply with the Labour Court judgment. That compliance, per the judgment, meant payment of damages in lieu of reinstatement. It also meant that the applicant could seek quantification as stated in the judgment.

Why the applicant did not seek quantification of damages remains a mystery. It cannot be argued that the 2nd respondent had sought to vary the express provision of the court order due to the manner in which it calculated what was due to the applicant. The damages could have been quantified as expressly stated in the court order. The National Prosecuting Authority was subsequently established in terms of s 258 of the Constitution. The National Prosecuting Authority Act [Chapter 7:20] provided for, *inter alia*, the transfer of persons from the Civil Service to the National Prosecuting Authority. Section 32 (4) of the Act provided that:-

> "Any person who immediately before the fixed date was employed by the state as a member of the Criminal Division of the Attorney-General's office and who has been

delegated in terms of any law to institute criminal proceedings and to conduct any prosecution in criminal proceedings on behalf of the state –

(a) shall continue in such employment …"

The order obtained by the applicant in *Dube* v *Civil Service Commission & Anor* HC 2009/16 had the effect of "substituting" the 2nd respondent by the 1st respondent. It could not change the Labour Court order as such was not placed before it for a purpose that would allow the High Court to tamper with that order. It is therefore my considered view that the applicant carried with him with such transfer, the Labour Court judgment which spoke of either reinstatement or payment of damages.

The 1st respondent therefore had to either reinstate the applicant or pay damages *in lieu* of reinstatement. Unfortunately the 1st respondent erroneously believed that because they were not in agreement with the order under HC 2009/16 they could justifiably decline to comply. At the commencement of the matter counsel for the 1st respondent appeared to hold the same view until the court afforded her an opportunity to read the judgment in the *Heuer* case, whose effect is that a court order remains one and is to be complied with unless vacated either through appeal, review or rescission.

I must pause to state that the flurry of correspondence, including a petition to the Parliamentary Portfolio Committee for Justice further delayed a matter which could easily have been resolved by seeking quantification of damages. It appears the applicant was only interested in reinstatement but when it had been made clear that such was not an option, the Labour Court order was clear on what was to happen and that is what ought to have happened but sadly did not.

The High Court declaratory order in HC 2009/16 was riding on the Labour Court order. Put differently had the applicant not succeeded in the appeal against his dismissal, with the Labour Court confirming such dismissal, he would not have been able to obtain the High Court order transferring him to the 1st respondent. He was not a dismissed employee as at the time the NPA was established, and therefore could be transferred.

Equally, were it not for the history he carried he would have been automatically transferred as were all other public prosecutors, with the establishment of the National Prosecuting Authority. He required a court order, one which he could only obtain as a result of the Labour Court judgment.

The Attorney-General's letter addressed to applicant's then legal practitioners, Calderwood, Bryce Hendrie & Partners dated 23 February 2018 was correct in so far as it made reference to the Labour Court judgment but got it wrong in not accepting that HC 2009/16 placed the responsibility on the 1st respondent to comply with the Labour Court judgment.

In opposing the present application, the 1st respondent correctly observed that paragraph 4 of the Labour Court judgment required the parties to agree on the quantum of damages and to seek quantification from the court should they fail to but got it wrong in asserting that the order transferring the applicant to the 1st respondent was invalid and unenforceable. When attempts to vacate it by way of rescission failed, the 1st respondent could have appealed but chose not to. The order therefore remains extant.

I turn now to consider whether a case has been made for a contempt of court order.

Counsel for the applicant referred the court to several cases which set out the requirements to be met in such proceedings.

In *Mafoshoro Farm (Pvt) Ltd* v *Nyanhongo & Anor* [200] ZWHHC 32 the court had this to say:-

> "Civil contempt is basically the wilful or *mala fide* failure to comply with an order of court. There are three basic requirements for contempt procedure that need to be proved, namely:-
>
> 1. That an order was granted by a competent court.
> 2. That the respondent was indeed served with the said order or that it was brought to his attention; and
> 3. That respondent has either disobeyed it or has neglected to comply with it."

(See also *Mpofu* v *Director of Salary Service Bureau & 2 Ors* HH 50-23, *Batezat* v *Permassan (Pvt) Ltd* S 49-09, *Mangwiro* v *Chombo N.O* HH 710-16, *Telecel Zimbabwe (Pvt) Ltd* v *Attorney-General of Zimbabwe* S 01-14, *John Strong (Pvt) Ltd & Anor* v *Wachenuka* [2010] ZWHHC 44)

The facts *in casu* established that the order was granted by a competent court. The respondent was served and was made aware of the order. The respondent here was initially the 2nd respondent before the applicant's transfer to the 1st respondent.

As already stated earlier on in this judgment the 2nd respondent expressed the attitude to the effect that it intended to comply but reinstatement was not possible. It proceeded to pay

out what it must have computed as the damages payable to the applicant. The applicant could have challenged that payment through approaching the court for quantification but did not.

Had the applicant approached the court for quantification, obtained an order for quantification and presented such for payment the complexion of this matter would have been very different. The matter would have possibly been on all fours with Mpofu *v Director of Salary Service Bureau & 2 Ors* (supra). The applicant in that case had an order of payment of US$58 131 and other benefits but had not received the full amount. The respondents were held in contempt of court and ordered to pay the outstanding amount owed to the applicant.

In casu the applicant could have had a court order showing that the US$31 446,56 he was paid in June 2016 fell short of what he was entitled to and like Mpofu, in the event that whatever was ordered was ignored, obtained a contempt order whose purging would have compelled the payment of whatever was outstanding.

When this matter was adjourned after the parties agreed with the court that it was a matter which could be resolved and following counsel for the 1st respondent's appreciation of the fact that HC 2009/26 was extant and in essence called for compliance with the Labour Court judgment, the parties were to consider the quantum of damages in light of reinstatement having failed. It appears the simple matter of working out the quantum proved a Herculean task. It is important to note however that 1st respondent came up with figures which the applicant's counsel requested for time to go through. The amount was not accepted and counsel's quantification was also not accepted by 1st respondent. To the court's amazement counsel for the applicant insisted that the matter proceed so they could push for contempt.

Whilst the first 2 requirements were met, can it be said the third requirement has also been met? If 1st respondent is prepared to have damages quantified by a competent court but the applicant, for some inexplicable reason, prefers to go the contempt of court route, who is stalling the resolution of the matter? How is 1st respondent being contemptuous of the court order? Surely 1st respondent cannot be compelled to reinstate the applicant. That could only be possible if the Labour Court judgment had not expressly stated what was to happen in the event that reinstatement was no longer an option.

In *John Strong (Pvt) Ltd & Anor* v *Wachenuka* (supra) CHATUKUTA J (as she then was) succinctly put it thus:-

> "Civil contempt is the wilful and *mala fide* refusal or failure to comply with an order of court. Before holding the respondent to have been in contempt of court, it is necessary for the court to be satisfied both that the order was not complied with and that the non-compliance was wilful on the respondent's part. (See *Lindsay* v *Lindsay* 1995 (1) ZLR 296 (S) at 299 B, *Macheka* v *Moyo* HB 78-03, *Scheelite King Mining* Co *(Pvt) Ltd* v *Mahachi* 1998 (1) ZLR 173 (H) at 177 H – 178 C. Once the applicant has established that the respondent has failed to comply with the order, the onus shifts to the respondent to establish that he or she was not wilful and *mala fide*." (See Herbstein and Van Winsen*, The Civil Practice of the Superior Courts in South Africa*, 1st Ed p 657 and *Macheka* v *Moyo* 2002 (2) ZLR 49 at 53 G-54 A.

The earlier erroneous belief by the then Attorney-General regarding the applicant's transfer cannot be classified as *mala fide*. Unfortunate yes in that one would have expected an officer of such a stature to appreciate that an order of court cannot be described as invalid unless declared so through rescission, appeal or review but to escalate such to *mala fide* is not borne out by the facts. He was labouring under a misapprehension of the law. That wrongness is not indicative of *mala fides*, it is a wrong that a litigant can genuinely make.

In *Stanley Farms (Pvt) Limited* v *Chidongo & 20 Ors* [2022] ZWHHC 27 the court put it thus: -

> "… all orders of court, whether correctly or incorrectly granted, have to be obeyed until they are properly set aside." The then Attorney-General, Mr. Goba, sadly lacked this knowledge.

As stated earlier the applicant should have proceeded to have the damages quantified as at the time of transfer to the 1st respondent, the 2nd respondent had already ruled out reinstatement and paid what it believed was owed to the applicant.

This brings me to the very order that is being sought. The effect of it is that the 1st respondent be committed to imprisonment for a period of 30 days the whole of which is to be suspended on condition he/she complies with the High Court order under case number HC 2009/16 (XREF LC/MT/65/13) directing him/her to facilitate the reinstatement of the applicant as a full member without loss and benefits (sic) of the National Prosecuting Authority of Zimbabwe within 10 days of the granting of this order.

I have already stated that HC 2009/16 sits on LC/MT/65/13 and LC/MT/65/13 gives the alternative of payment of damages. The applicant can therefore not seek to read into the Labour Court order only that which he desires. The High Court could not have bestowed more rights on him than those he acquired by virtue of the Labour Court judgment which set aside

his dismissal and ordered reinstatement and in the alternative payment of damages in the event that reinstatement was no longer feasible. The High Court order is not a stand-alone order but must be read in the context of the Labour Court judgment.

Had the order been restricted to reinstatement only the applicant could have made a case for the relief he seeks. This is so because the 2nd respondent and by extension the 1st respondent would have had no alternative but to reinstate the applicant. This is not the case.

How can this court grant an order for contempt ordering imprisonment to be suspended on condition of compliance when such compliance is what the 1st respondent sought to do by coming up with quantified damages which were rejected. The failure to then seek a court of competent jurisdiction to quantify the damages cannot be placed on the 1st respondent's shoulders but the applicant's. The applicant sadly wanted reinstatement forgetting that the order he was seeking to enforce afforded an alternative of payment of damages, which the employer opted for.

Where therefore is the wilful and *mala fide* refusal or failure to comply with the order of court?

As stated earlier, this matter could have been concluded in 2016 when the payment of US$31 446,56 was made. Quantification ought to have followed thereafter and the applicant would have pursued payment of that amount as quantified. A refusal or failure to pay the quantified damages would have made a case for contempt of court.

It is for the foregoing reasons that I am unable to find that a case for contempt of court has been made.

As regards costs, the circumstances of this case do not warrant an award of costs against the applicant. The back and forth that occurred *in casu* could have been avoided had both parties applied their mind to what needed to be done and proceeded to do it.

In the result, I make the following order

The application for contempt of court be and is hereby dismissed with no order as to costs.

Zimbabwe Lawyers for Human Rights, applicant's legal practitioners
National Prosecuting Authority, 1st respondent's legal practitioners
Civil Division of the Attorney General, 2nd to 4th respondents' legal practitioners